

SECOND REGULAR SESSION
[TRULY AGREED TO AND FINALLY PASSED]
HOUSE COMMITTEE SUBSTITUTE FOR
SENATE SUBSTITUTE FOR
SENATE COMMITTEE SUBSTITUTE FOR

SENATE BILL NO. 878

103RD GENERAL ASSEMBLY
2026

5598H.07T

AN ACT

To repeal sections 195.417, 338.010, 338.012, and 579.060, RSMo, and to enact in lieu thereof ten new sections relating to pharmaceutical drugs and devices, with penalty provisions.

Be it enacted by the General Assembly of the State of Missouri, as follows:

Section A. Sections 195.417, 338.010, 338.012, and
2 579.060, RSMo, are repealed and ten new sections enacted in
3 lieu thereof, to be known as sections 195.417, 338.010, 338.012,
4 338.206, 338.208, 338.312, 376.417, 376.1280, 376.1960, and
5 579.060, to read as follows:

195.417. 1. The limits specified in this section
2 shall not apply to any quantity of such product, mixture, or
3 preparation which must be dispensed, sold, or distributed in
4 a pharmacy pursuant to a valid prescription.

5 2. Within any thirty-day period, no person shall sell,
6 dispense, or otherwise provide to the same individual, and
7 no person shall purchase, receive, or otherwise acquire more
8 than the following amount: any number of packages of any
9 drug product containing any detectable amount of ephedrine,
10 phenylpropanolamine, or pseudoephedrine, or any of their
11 salts or optical isomers, or salts of optical isomers,
12 either as:

EXPLANATION-Matter enclosed in bold-faced brackets [thus] in this bill is not enacted and is intended to be omitted in the law.

- 13 (1) The sole active ingredient; or
14 (2) One of the active ingredients of a combination
15 drug; or
16 (3) A combination of any of the products specified in
17 subdivisions (1) and (2) of this subsection;

18 in any total amount greater than seven and two-tenths grams,
19 without regard to the number of transactions.

20 3. Within any twenty-four-hour period, no pharmacist,
21 intern pharmacist, or registered pharmacy technician shall
22 sell, dispense, or otherwise provide to the same individual,
23 and no person shall purchase, receive, or otherwise acquire
24 more than the following amount: any number of packages of
25 any drug product containing any detectable amount of
26 ephedrine, phenylpropanolamine, or pseudoephedrine, or any
27 of their salts or optical isomers, or salts of optical
28 isomers, either as:

- 29 (1) The sole active ingredient; or
30 (2) One of the active ingredients of a combination
31 drug; or
32 (3) A combination of any of the products specified in
33 subdivisions (1) and (2) of this subsection;

34 in any total amount greater than three and six-tenths grams
35 without regard to the number of transactions.

36 4. Within any twelve-month period, no person shall
37 sell, dispense, or otherwise provide to the same individual,
38 and no person shall purchase, receive, or otherwise acquire
39 more than the following amount: any number of packages of
40 any drug product containing any detectable amount of
41 ephedrine, phenylpropanolamine, or pseudoephedrine, or any

of their salts or optical isomers, or salts of optical isomers, either as:

- (1) The sole active ingredient; or
- (2) One of the active ingredients of a combination drug; or
- (3) A combination of any of the products specified in subdivisions (1) and (2) of this subsection;

in any total amount greater than ~~[forty-three]~~ **sixty-one** and two-tenths grams, without regard to the number of transactions.

5. All packages of any compound, mixture, or preparation containing any detectable quantity of ephedrine, phenylpropanolamine, or pseudoephedrine, or any of their salts or optical isomers, or salts of optical isomers, except those that are excluded from Schedule V in subsection 17 or 18 of section 195.017, shall be offered for sale only from behind a pharmacy counter where the public is not permitted, and only by a registered pharmacist or registered pharmacy technician under section 195.017.

6. Each pharmacy shall submit information regarding sales of any compound, mixture, or preparation as specified in this section in accordance with transmission methods and frequency established by the department by regulation.

7. (1) **As used in this subsection, "administrator of the real-time electronic pseudoephedrine tracking system" means the entity responsible for developing, implementing, and maintaining the data collection system described in 19 CSR 30-1.074 or any successor regulation.**

(2) **Beginning October 1, 2026, and continuing thereafter, any manufacturer of any compound, mixture, or preparation specified in this section that is sold in or**

73 into the state shall, on a monthly basis, pay fees to the
74 administrator of the real-time electronic pseudoephedrine
75 tracking system.

76 (3) The administrator of the real-time electronic
77 pseudoephedrine tracking system shall be responsible for
78 setting the fee levels required under this subsection.

79 (4) Upon the request of the department of health and
80 senior services, any manufacturer required to pay fees under
81 this subsection shall provide written documentation
82 demonstrating that the manufacturer has paid such fees.

83 (5) The fees required under this subsection shall be
84 assessed against each manufacturer solely on the basis of
85 sales transactions involving that manufacturer's own
86 compounds, mixtures, or preparations sold in or into the
87 state. No manufacturer shall be assessed fees based upon
88 transactions attributable to the compounds, mixtures, or
89 preparations of any other manufacturer.

90 8. No prescription shall be required for the
91 dispensation, sale, or distribution of any drug product
92 containing any detectable amount of ephedrine,
93 phenylpropanolamine, or pseudoephedrine, or any of their
94 salts or optical isomers, or salts of optical isomers, in an
95 amount within the limits described in subsections 2, 3, and
96 4 of this section. The superintendent of the Missouri state
97 highway patrol shall report to the revisor of statutes and
98 the general assembly by February first when the statewide
99 number of methamphetamine laboratory seizure incidents
100 exceeds three hundred incidents in the previous calendar
101 year. The provisions of this subsection shall expire on
102 April first of the calendar year in which the revisor of
103 statutes receives such notification.

104 [8.] 9. This section shall supersede and preempt any
105 local ordinances or regulations, including any ordinances or
106 regulations enacted by any political subdivision of the
107 state. This section shall not apply to the sale of any
108 animal feed products containing ephedrine or any naturally
109 occurring or herbal ephedra or extract of ephedra.

110 [9.] 10. Any local ordinances or regulations enacted
111 by any political subdivision of the state prior to August
112 28, 2020, requiring a prescription for the dispensation,
113 sale, or distribution of any drug product containing any
114 detectable amount of ephedrine, phenylpropanolamine, or
115 pseudoephedrine, or any of their salts or optical isomers,
116 or salts of optical isomers, in an amount within the limits
117 described in subsections 2, 3, and 4 of this section shall
118 be void and of no effect and no such political subdivision
119 shall maintain or enforce such ordinance or regulation.

120 [10.] 11. All logs, records, documents, and electronic
121 information maintained for the dispensing of these products
122 shall be open for inspection and copying by municipal,
123 county, and state or federal law enforcement officers whose
124 duty it is to enforce the controlled substances laws of this
125 state or the United States.

126 [11.] 12. All persons who dispense or offer for sale
127 pseudoephedrine and ephedrine products, except those that
128 are excluded from Schedule V in subsection 17 or 18 of
129 section 195.017, shall ensure that all such products are
130 located only behind a pharmacy counter where the public is
131 not permitted.

132 [12.] 13. The penalty for a knowing or reckless
133 violation of this section is found in section 579.060.

338.010. 1. The "practice of pharmacy" includes:

2 (1) The interpretation, implementation, and evaluation
3 of medical prescription orders, including any legend drugs
4 under 21 U.S.C. Section 353, and the receipt, transmission,
5 or handling of such orders or facilitating the dispensing of
6 such orders;

7 (2) The designing, initiating, implementing, and
8 monitoring of a medication therapeutic plan in accordance
9 with the provisions of this section;

10 (3) The compounding, dispensing, labeling, and
11 administration of drugs and devices pursuant to medical
12 prescription orders;

13 (4) The ordering and administration of vaccines
14 approved or authorized by the U.S. Food and Drug
15 Administration, **as of January 1, 2026, or thereafter,**
16 excluding vaccines for cholera, monkeypox, Japanese
17 encephalitis, typhoid, rabies, yellow fever, tick-borne
18 encephalitis, anthrax, tuberculosis, dengue, Hib, polio,
19 rotavirus, smallpox, [and any vaccine approved after January
20 1, 2023] **or any vaccine that is not jointly included by**
21 **joint rules promulgated by the board of pharmacy and the**
22 **state board of registration for the healing arts for**
23 **vaccines approved by the U.S. Food and Drug Administration**
24 **after January 1, 2026,** to persons at least seven years of
25 age or the age recommended by the Centers for Disease
26 Control and Prevention, whichever is older, pursuant to
27 joint promulgation of rules established by the board of
28 pharmacy and the state board of registration for the healing
29 arts unless rules are established under a state of emergency
30 as described in section 44.100;

31 (5) The participation in drug selection according to
32 state law and participation in drug utilization reviews;

33 (6) The proper and safe storage of drugs and devices
34 and the maintenance of proper records thereof;

35 (7) Consultation with patients and other health care
36 practitioners, and veterinarians and their clients about
37 legend drugs, about the safe and effective use of drugs and
38 devices;

39 (8) The prescribing and dispensing of any nicotine
40 replacement therapy product under section 338.665;

41 (9) The dispensing of HIV postexposure prophylaxis
42 pursuant to section 338.730; and

43 (10) The offering or performing of those acts,
44 services, operations, or transactions necessary in the
45 conduct, operation, management and control of a pharmacy.

46 2. No person shall engage in the practice of pharmacy
47 unless he or she is licensed under the provisions of this
48 chapter.

49 3. This chapter shall not be construed to prohibit the
50 use of auxiliary personnel under the direct supervision of a
51 pharmacist from assisting the pharmacist in any of his or
52 her duties. This assistance in no way is intended to
53 relieve the pharmacist from his or her responsibilities for
54 compliance with this chapter and he or she will be
55 responsible for the actions of the auxiliary personnel
56 acting in his or her assistance.

57 4. This chapter shall not be construed to prohibit or
58 interfere with any legally registered practitioner of
59 medicine, dentistry, or podiatry, or veterinary medicine
60 only for use in animals, or the practice of optometry in
61 accordance with and as provided in sections 195.070 and
62 336.220 in the compounding, administering, prescribing, or
63 dispensing of his or her own prescriptions.

64 5. A pharmacist with a certificate of medication
65 therapeutic plan authority may provide medication therapy
66 services pursuant to a written protocol from a physician
67 licensed under chapter 334 to patients who have established
68 a physician-patient relationship, as described in
69 subdivision (1) of subsection 1 of section 191.1146, with
70 the protocol physician. The written protocol authorized by
71 this section shall come only from the physician and shall
72 not come from a nurse engaged in a collaborative practice
73 arrangement under section 334.104, or from a physician
74 assistant engaged in a collaborative practice arrangement
75 under section 334.735.

76 6. Nothing in this section shall be construed as to
77 prevent any person, firm or corporation from owning a
78 pharmacy regulated by sections 338.210 to 338.315, provided
79 that a licensed pharmacist is in charge of such pharmacy.

80 7. Nothing in this section shall be construed to apply
81 to or interfere with the sale of nonprescription drugs and
82 the ordinary household remedies and such drugs or medicines
83 as are normally sold by those engaged in the sale of general
84 merchandise.

85 8. No health carrier as defined in chapter 376 shall
86 require any physician with which they contract to enter into
87 a written protocol with a pharmacist for medication
88 therapeutic services.

89 9. This section shall not be construed to allow a
90 pharmacist to diagnose or independently prescribe
91 pharmaceuticals.

92 10. The state board of registration for the healing
93 arts, under section 334.125, and the state board of
94 pharmacy, under section 338.140, shall jointly promulgate
95 rules regulating the use of protocols for medication therapy

96 services. Such rules shall require protocols to include
97 provisions allowing for timely communication between the
98 pharmacist and the protocol physician or similar body
99 authorized by this section, and any other patient protection
100 provisions deemed appropriate by both boards. In order to
101 take effect, such rules shall be approved by a majority vote
102 of a quorum of each board. Neither board shall separately
103 promulgate rules regulating the use of protocols for
104 medication therapy services. Any rule or portion of a rule,
105 as that term is defined in section 536.010, that is created
106 under the authority delegated in this section shall become
107 effective only if it complies with and is subject to all of
108 the provisions of chapter 536 and, if applicable, section
109 536.028. This section and chapter 536 are nonseverable and
110 if any of the powers vested with the general assembly
111 pursuant to chapter 536 to review, to delay the effective
112 date, or to disapprove and annul a rule are subsequently
113 held unconstitutional, then the grant of rulemaking
114 authority and any rule proposed or adopted after August 28,
115 2007, shall be invalid and void.

116 11. The state board of pharmacy may grant a
117 certificate of medication therapeutic plan authority to a
118 licensed pharmacist who submits proof of successful
119 completion of a board-approved course of academic clinical
120 study beyond a bachelor of science in pharmacy, including
121 but not limited to clinical assessment skills, from a
122 nationally accredited college or university, or a
123 certification of equivalence issued by a nationally
124 recognized professional organization and approved by the
125 board of pharmacy.

126 12. Any pharmacist who has received a certificate of
127 medication therapeutic plan authority may engage in the

designing, initiating, implementing, and monitoring of a medication therapeutic plan as defined by a written protocol from a physician that may be specific to each patient for care by a pharmacist.

13. Nothing in this section shall be construed to allow a pharmacist to make a therapeutic substitution of a pharmaceutical prescribed by a physician unless authorized by the written protocol or the physician's prescription order.

14. "Veterinarian", "doctor of veterinary medicine", "practitioner of veterinary medicine", "DVM", "VMD", "BVSe", "BVMS", "BSe (Vet Science)", "VMB", "MRCVS", or an equivalent title means a person who has received a doctor's degree in veterinary medicine from an accredited school of veterinary medicine or holds an Educational Commission for Foreign Veterinary Graduates (EDFVG) certificate issued by the American Veterinary Medical Association (AVMA).

15. In addition to other requirements established by the joint promulgation of rules by the board of pharmacy and the state board of registration for the healing arts:

(1) A pharmacist shall administer vaccines by protocol in accordance with treatment guidelines established by the Centers for Disease Control and Prevention (CDC);

(2) A pharmacist who is administering a vaccine shall request a patient to remain in the pharmacy a safe amount of time after administering the vaccine to observe any adverse reactions. Such pharmacist shall have adopted emergency treatment protocols.

16. In addition to other requirements by the board, a pharmacist shall receive additional training as required by the board and evidenced by receiving a certificate from the

board upon completion, and shall display the certification in his or her pharmacy where vaccines are delivered.

17. A pharmacist shall inform the patient that the administration of a vaccine will be entered into the ShowMeVax system, as administered by the department of health and senior services. The patient shall attest to the inclusion of such information in the system by signing a form provided by the pharmacist. If the patient indicates that he or she does not want such information entered into the ShowMeVax system, the pharmacist shall provide a written report within fourteen days of administration of a vaccine to the patient's health care provider, if provided by the patient, containing:

(1) The identity of the patient;

(2) The identity of the vaccine or vaccines administered;

(3) The route of administration;

(4) The anatomic site of the administration;

(5) The dose administered; and

(6) The date of administration.

18. A pharmacist licensed under this chapter may order and administer vaccines approved or authorized by the U.S. Food and Drug Administration to address a public health need, as lawfully authorized by the state or federal government, or a department or agency thereof, during a state or federally declared public health emergency.

338.012. 1. A pharmacist with a certificate of medication therapeutic plan authority may provide influenza, group A streptococcus, and COVID-19 medication therapy services pursuant to [a statewide standing order issued by the director or chief medical officer of the department of health and senior services if that person is a licensed

7 physician, or a licensed physician designated by the
8 department of health and senior services] **rules established**
9 **by the board of pharmacy and the state board of registration**
10 **for the healing arts, as described in this section.**

11 2. **This section shall not be construed to allow a**
12 **pharmacist to diagnose or independently prescribe**
13 **pharmaceuticals.**

14 3. The state board of registration for the healing
15 arts, pursuant to section 334.125, and the state board of
16 pharmacy, pursuant to section 338.140, shall jointly
17 promulgate rules to implement the provisions of this
18 section. Any rule or portion of a rule, as that term is
19 defined in section 536.010, that is created under the
20 authority delegated in this section shall become effective
21 only if it complies with and is subject to all of the
22 provisions of chapter 536 and, if applicable, section
23 536.028. This section and chapter 536 are nonseverable and
24 if any of the powers vested with the general assembly
25 pursuant to chapter 536 to review, to delay the effective
26 date, or to disapprove and annul a rule are subsequently
27 held unconstitutional, then the grant of rulemaking
28 authority and any rule proposed or adopted after August 28,
29 2023, shall be invalid and void.

338.206. 1. **As used in this section, the term**
2 **"medical device" shall mean equipment that is furnished by a**
3 **supplier or a home health agency and meets the following**
4 **conditions:**

5 (1) **Is a device classified by the U.S. Food and Drug**
6 **Administration as a Class I or Class II device under 21**
7 **U.S.C. Section 360c and its implementing regulations under**
8 **21 CFR Parts 860 to 892;**

9 (2) Is primarily and customarily used to serve a
10 medical purpose;

11 (3) Generally is not useful to an individual in the
12 absence of an illness or injury; and

13 (4) Is appropriate for use in the home.

14 2. Notwithstanding any provision of this chapter to
15 the contrary, pharmacists may prescribe any medical devices
16 authorized by rule promulgated jointly by the state board of
17 registration for the healing arts and the board of pharmacy
18 in accordance with subsection 3 of this section.

19 3. The state board of registration for the healing
20 arts, pursuant to section 334.125, and the board of
21 pharmacy, pursuant to section 338.140, shall jointly
22 promulgate rules to implement the provisions of this
23 section. Such rules shall be written and effective within
24 six months of the effective date of this section.

25 4. Any rule or portion of a rule, as that term is
26 defined in section 536.010, that is created under the
27 authority delegated in this section shall become effective
28 only if it complies with and is subject to all of the
29 provisions of chapter 536 and, if applicable, section
30 536.028. This section and chapter 536 are nonseverable and
31 if any of the powers vested with the general assembly
32 pursuant to chapter 536 to review, to delay the effective
33 date, or to disapprove and annul a rule are subsequently
34 held unconstitutional, then the grant of rulemaking
35 authority and any rule proposed or adopted after August 28,
36 2026, shall be invalid and void.

 338.208. Notwithstanding any other provision of law to
2 the contrary, a pharmacist may dispense ivermectin and
3 hydroxychloroquine to a person, without requiring a
4 prescription order from a licensed health care practitioner,

5 upon the approval of a warning label for the use and
6 indication in accordance with any written, standardized
7 procedures or protocols for the pharmacist issued by the
8 board of pharmacy, including, if required, providing the
9 person with instructions on the proper use of ivermectin and
10 hydroxychloroquine. Any ivermectin or hydroxychloroquine
11 that is dispensed by a pharmacist without a prescription
12 shall be kept behind the counter or otherwise not available
13 for self-service or direct consumer access, be stored in a
14 secure area accessible only to pharmacy personnel, and be
15 dispensed only by a pharmacist or pharmacy technician under
16 a pharmacist's supervision.

338.312. 1. As used in this section, unless the
2 context requires otherwise, the following terms mean:

3 (1) "Declared state disaster or emergency", a disaster
4 or emergency event for which a governor's state of emergency
5 proclamation has been issued or that the President of the
6 United States has declared to be a major disaster or
7 emergency;

8 (2) "Disaster period", the period of time that begins
9 ten days before a governor's proclamation of a state of
10 emergency or the declaration by the President of the United
11 States of a major disaster or emergency, whichever occurs
12 first, and extending for a period of sixty calendar days
13 following the end of the period specified in the
14 proclamation or declaration or sixty calendar days from the
15 proclamation or declaration if no end is provided. The
16 governor may extend the disaster period as warranted;

17 (3) "Pharmacy", the same meaning given to the term in
18 section 338.210.

19 2. Notwithstanding any provision of law to contrary,
20 the board of pharmacy shall have the authority to waive

21 compliance with any Missouri rules and regulations for a
22 licensed pharmacy that is domiciled or headquartered in this
23 state when such pharmacy is dispensing, shipping, or
24 delivering prescription drugs into another state or United
25 States territory that is experiencing a declared state
26 disaster or emergency, provided that:

27 (1) The pharmacy is a licensed pharmacy in good
28 standing under this chapter and is authorized to ship
29 prescription drugs into the state or territory in question;

30 (2) The pharmacy is responding to an active declared
31 state disaster or emergency;

32 (3) The pharmacy complies with all emergency rules and
33 regulations for pharmacies established by the state or
34 territory for the duration of the disaster period;

35 (4) The pharmacy complies with all applicable federal
36 laws and regulations; and

37 (5) The waiver applies only to prescription drugs
38 dispensed, shipped, or delivered to residents or health care
39 facilities located within the geographic area specified in
40 the declared state disaster or emergency.

41 3. The board of pharmacy may promulgate rules to
42 implement the provisions of this section. Any rule or
43 portion of a rule, as that term is defined in section
44 536.010, that is created under the authority delegated in
45 this section shall become effective only if it complies with
46 and is subject to all of the provisions of chapter 536 and,
47 if applicable, section 536.028. This section and chapter
48 536 are nonseverable and if any of the powers vested with
49 the general assembly pursuant to chapter 536 to review, to
50 delay the effective date, or to disapprove and annul a rule
51 are subsequently held unconstitutional, then the grant of

rulemaking authority and any rule proposed or adopted after August 28, 2026, shall be invalid and void.

376.417. 1. As used in this section, the following terms mean:

(1) "340B drug", the same meaning given to the term in section 376.414;

(2) "Covered entity", any entity described in subparagraphs (A) to (K) of subsection (a)(4) of Section 340B of the Public Health Service Act, 42 U.S.C. Section 256b, including any pharmacy with which such entity has contracted to dispense 340B drugs on behalf of the entity;

(3) "Health carrier", the same meaning given to the term in section 376.1350;

(4) "Pharmacy", an entity licensed under chapter 338;

(5) "Pharmacy benefits manager", the same meaning given to the term in section 376.388.

2. A health carrier, a pharmacy benefits manager, or an agent or affiliate of such health carrier or pharmacy benefits manager shall not discriminate against a covered entity including, but not limited to, by doing any of the following:

(1) Reimbursing a covered entity for a quantity of a 340B drug in an amount less than it would pay any other similarly situated pharmacy or entity that is not a covered entity for such quantity of such drug on the basis that the covered entity is a covered entity or that the covered entity dispenses 340B drugs. The director of the department of commerce and insurance shall specify by rule the circumstances under which a pharmacy or entity shall be deemed a "similarly situated pharmacy or entity" for purposes of this subdivision;

30 (2) Imposing any terms or conditions on covered
31 entities that differ from such terms or conditions applied
32 to other similarly situated entities or pharmacies that are
33 not covered entities on the basis that the covered entity is
34 a covered entity or that the covered entity dispenses 340B
35 drugs including, but not limited to, terms or conditions
36 with respect to any of the following:

37 (a) Fees, chargebacks, clawbacks, adjustments, or
38 other assessments;

39 (b) Professional dispensing fees;

40 (c) Restrictions or requirements regarding
41 participation in standard or preferred pharmacy networks;

42 (d) Requirements relating to the frequency or scope of
43 audits or to inventory management systems using generally
44 accepted accounting principles; and

45 (e) Any other restrictions, conditions, practices, or
46 policies that, as specified by the director of the
47 department of commerce and insurance, interfere with the
48 ability of a covered entity to maximize the value of
49 discounts provided under 42 U.S.C. Section 256b;

50 (3) Discriminating in reimbursement to a covered
51 entity based on the determination or indication a drug is a
52 340B drug;

53 (4) Requiring a covered entity to identify, either
54 directly or through a third party, a 340B drug;

55 (5) Refusing to cover drugs purchased under the 340B
56 drug-pricing program; or

57 (6) Requiring a covered entity to reverse, resubmit,
58 or clarify a 340B drug-pricing claim after the initial
59 adjudication unless these actions are:

60 (a) In the normal course of pharmacy business and not
61 related to 340B drug pricing; or

62 (b) Required by federal law.

63 3. The director of the department of commerce and
64 insurance shall impose a civil penalty on any health
65 carrier, pharmacy benefits manager, or agent or affiliate of
66 such health carrier or pharmacy benefits manager that
67 violates the requirements of this section. Such penalty
68 shall not exceed five thousand dollars per violation per day.

69 4. The director of the department of commerce and
70 insurance shall promulgate rules to implement the provisions
71 of this section. Any rule or portion of a rule, as that
72 term is defined in section 536.010, that is created under
73 the authority delegated in this section shall become
74 effective only if it complies with and is subject to all of
75 the provisions of chapter 536 and, if applicable, section
76 536.028. This section and chapter 536 are nonseverable and
77 if any of the powers vested with the general assembly
78 pursuant to chapter 536 to review, to delay the effective
79 date, or to disapprove and annul a rule are subsequently
80 held unconstitutional, then the grant of rulemaking
81 authority and any rule proposed or adopted after August 28,
82 2026, shall be invalid and void.

376.1280. 1. As used in this section, the following
2 terms mean:

3 (1) "Acute pain", pain that results from disease,
4 accidental or intentional trauma, or other causes, that a
5 health care provider reasonably expects to last thirty days
6 or fewer;

7 (2) "Chronic pain", pain that is a persistent and long-
8 lasting condition characterized by discomfort or pain that
9 lasts for more than twelve weeks, often persisting beyond
10 the expected healing time. It may result from various

causes including, but not limited to, injury, surgery, nerve damage, or underlying medical conditions;

(3) "Enrollee", the same meaning given to the term in section 376.1350;

(4) "Health benefit plan", the same meaning given to the term in section 376.1350;

(5) "Health care professional", the same meaning given to the term in section 376.1350.

2. Notwithstanding any provision of law to the contrary, when a licensed health care professional acting within the scope of his or her license prescribes a nonopioid medication for the treatment of acute or chronic pain to an enrollee, it shall be unlawful for a health benefit plan to:

(1) Deny coverage of the nonopioid prescription drug in favor of an opioid prescription drug;

(2) Require the enrollee to try an opioid prescription drug before providing coverage of the nonopioid prescription drug; or

(3) Require a higher level of cost-sharing for the nonopioid prescription drug than for an opioid prescription drug.

3. This section shall apply to health benefit plans delivered, issued for delivery, continued, or renewed on or after January 1, 2027.

4. The provisions of this section related to the treatment of acute pain shall be applicable only when multiple nonopioid medications are approved by the U.S. Food and Drug Administration and indicated for the treatment of acute pain.

5. The provisions of this section related to the treatment of chronic pain shall be applicable only when

multiple nonopioid medications are approved by the U.S. Food and Drug Administration and indicated for the treatment of chronic pain.

376.1960. 1. This section shall be known and may be cited as "Nora's Law".

2. As used in this section, the following terms mean:

(1) "Health benefit plan", the same meaning given to the term in section 376.1350;

(2) "Home blood pressure monitoring device", a mobile device that can be used to measure blood pressure, and that is validated for clinical accuracy and device calibration;

(3) "Home blood pressure monitoring device services", patient education and training services on the setup and use of a home blood pressure monitoring device.

3. Health benefit plans delivered, issued for delivery, continued or renewed in this state on or after January 1, 2027, and providing for maternity benefits, shall provide coverage for a prescribed home blood pressure monitoring device and home blood pressure monitoring device services for pregnant women or women within twelve months postpartum when determined to be medically appropriate in accordance with American College of Obstetricians and Gynecologists guidelines. Home blood pressure monitoring devices or home blood pressure monitoring device services prescribed shall meet the requirements for medical necessity only and can only be prescribed again if the condition being monitored deteriorates as to necessitate another prescription, or as necessary for subsequent pregnancies.

579.060. 1. A person commits the offense of unlawful sale, distribution, or purchase of over-the-counter methamphetamine precursor drugs if he or she knowingly:

4 (1) Sells, distributes, dispenses, or otherwise
5 provides any number of packages of any drug product
6 containing detectable amounts of ephedrine,
7 phenylpropanolamine, or pseudoephedrine, or any of their
8 salts, optical isomers, or salts of optical isomers, in a
9 total amount greater than seven and two-tenths grams to the
10 same individual within a thirty-day period, unless the
11 amount is dispensed, sold, or distributed pursuant to a
12 valid prescription; or

13 (2) Purchases, receives, or otherwise acquires within
14 a thirty-day period any number of packages of any drug
15 product containing any detectable amount of ephedrine,
16 phenylpropanolamine, or pseudoephedrine, or any of their
17 salts or optical isomers, or salts of optical isomers in a
18 total amount greater than seven and two-tenths grams,
19 without regard to the number of transactions, unless the
20 amount is purchased, received, or acquired pursuant to a
21 valid prescription; or

22 (3) Purchases, receives, or otherwise acquires within
23 a twenty-four-hour period any number of packages of any drug
24 product containing any detectable amount of ephedrine,
25 phenylpropanolamine, or pseudoephedrine, or any of their
26 salts or optical isomers, or salts of optical isomers in a
27 total amount greater than three and six-tenths grams,
28 without regard to the number of transactions, unless the
29 amount is purchased, received, or acquired pursuant to a
30 valid prescription; or

31 (4) Sells, distributes, dispenses, or otherwise
32 provides any number of packages of any drug product
33 containing detectable amounts of ephedrine,
34 phenylpropanolamine, or pseudoephedrine, or any of their
35 salts, optical isomers, or salts of optical isomers, in a

total amount greater than ~~[forty-three]~~ **sixty-one** and two-tenths grams to the same individual within a twelve-month period, unless the amount is dispensed, sold, or distributed pursuant to a valid prescription; or

(5) Purchases, receives, or otherwise acquires within a twelve-month period any number of packages of any drug product containing any detectable amount of ephedrine, phenylpropanolamine, or pseudoephedrine, or any of their salts or optical isomers, or salts of optical isomers in a total amount greater than ~~[forty-three]~~ **sixty-one** and two-tenths grams, without regard to the number of transactions, unless the amount is purchased, received, or acquired pursuant to a valid prescription; or

(6) Dispenses or offers drug products that are not excluded from Schedule V in subsection 17 or 18 of section 195.017 and that contain detectable amounts of ephedrine, phenylpropanolamine, or pseudoephedrine, or any of their salts, optical isomers, or salts of optical isomers, without ensuring that such products are located behind a pharmacy counter where the public is not permitted and that such products are dispensed by a registered pharmacist or pharmacy technician under subsection 11 of section 195.017; or

(7) Holds a retail sales license issued under chapter 144 and knowingly sells or dispenses packages that do not conform to the packaging requirements of section 195.418.

2. A pharmacist, intern pharmacist, or registered pharmacy technician commits the offense of unlawful sale, distribution, or purchase of over-the-counter methamphetamine precursor drugs if he or she knowingly:

(1) Sells, distributes, dispenses, or otherwise provides any number of packages of any drug product

68 containing detectable amounts of ephedrine,
69 phenylpropanolamine, or pseudoephedrine, or any of their
70 salts or optical isomers, or salts of optical isomers, in a
71 total amount greater than three and six-tenth grams to the
72 same individual within a twenty-four hour period, unless the
73 amount is dispensed, sold, or distributed pursuant to a
74 valid prescription; or

75 (2) Fails to submit information under subsection 13 of
76 section 195.017 and subsection 6 of section 195.417 about
77 the sales of any compound, mixture, or preparation of
78 products containing detectable amounts of ephedrine,
79 phenylpropanolamine, or pseudoephedrine, or any of their
80 salts, optical isomers, or salts of optical isomers, in
81 accordance with transmission methods and frequency
82 established by the department of health and senior services;
83 or

84 (3) Fails to implement and maintain an electronic log,
85 as required by subsection 12 of section 195.017, of each
86 transaction involving any detectable quantity of
87 pseudoephedrine, its salts, isomers, or salts of optical
88 isomers or ephedrine, its salts, optical isomers, or salts
89 of optical isomers; or

90 (4) Sells, distributes, dispenses or otherwise
91 provides to an individual under eighteen years of age
92 without a valid prescription any number of packages of any
93 drug product containing any detectable quantity of
94 pseudoephedrine, its salts, isomers, or salts of optical
95 isomers, or ephedrine, its salts or optical isomers, or
96 salts of optical isomers.

97 3. Any person who violates the packaging requirements
98 of section 195.418 and is considered the general owner or
99 operator of the outlet where ephedrine, pseudoephedrine, or

100 phenylpropanolamine products are available for sale shall
101 not be penalized if he or she documents that an employee
102 training program was in place to provide the employee who
103 made the unlawful retail sale with information on the state
104 and federal regulations regarding ephedrine,
105 pseudoephedrine, or phenylpropanolamine.

106 4. **A manufacturer commits the offense of unlawful**
107 **sale, distribution, or purchase of over-the-counter**
108 **methamphetamine precursor drugs if he or she knowingly fails**
109 **to pay the fees required under subsection 7 of section**
110 **195.417.**

111 5. The offense of unlawful sale, distribution, or
112 purchase of over-the-counter methamphetamine precursor drugs
113 is a class A misdemeanor.

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